

20STCV27967 20STCV27967

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Case Number: 20STCV27967 Hearing Date: August 7, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/07/2026

CASE NUMBER: 20STCV27967

CASE NAME: SHILAH MADDALENA, et al. vs DORCHESTER PROPERTIES LLC, ...

MOVING PARTY: Defendant Dorchester Properties
LLC.

OPPOSING PARTY: Plaintiff Shilah Maddalena

PROCEEDING: Motion to compel answers at deposition by lisa nagy

RULING SUMMARY: Defendants Dorchester Properties LLC,
Westside Habitats LLC, and Richard Mehta's Motion to Compel Answers at
Deposition by Dr. Lisa Nagy is granted in part and denied in part as stated in
the Ruling, below.

Background

On July

24, 2020, plaintiffs Shilah Maddalena ("Maddalena"); Scott Weil ("Weil");

Beatrice Dikker ("Dikker"); Jason Cousins ("Jason");[1]

Luca Cousins, a minor by and through an unnamed guardian ad litem ("Luca");

London Cousins, a minor by and through an unnamed guardian ad litem ("London");

and Lucky Cousins, a minor by and through an unnamed guardian ad litem ("Lucky"

and collectively "Plaintiffs") filed a complaint against defendants Dorchester Properties LLC ("Dorchester"), Westside Habitats LLC ("Westside"), and Richard Mehta ("Mehta" and, with Dorchester and Westside, "Defendants") alleging 10[2] causes of action for: (1) Breach of Implied Warranty of Habitability by Plaintiffs against Defendants; (2) Nuisance by Plaintiffs against Defendants; (3) Breach of Contract (Unit 104) by Maddalena and Weil (collectively "Unit 104 Plaintiffs") against Dorchester; (4) Breach of Contract (Unit 110) by Dikker, Jason, Luca, London, and Lucky (collectively "Unit 110 Plaintiffs") against Dorchester; (5) Negligence by Plaintiffs against Defendants; (6) Negligent Misrepresentation by Plaintiffs against Defendants; (7) Constructive Eviction by Plaintiffs against Defendants; (8) Premises Liability by Plaintiffs against Defendants; (9) Fraud by Plaintiffs against Defendants; and (10) Emotional Distress by Plaintiffs against Defendants.

Plaintiffs

allege that they live in units of the apartment complex located at 865 N. Fuller Ave., Los Angeles, CA 90046 known as the Parkview Apartments ("Parkview"), owned by both Dorchester and Westside and managed by Westside. Plaintiffs contend that Mehta was the agent for Dorchester and was also responsible for maintaining Parkview. Regarding Unit 104, after Dorchester bought Parkview, Maddalena was forced to enter into a new lease or, as informed by Dorchester, she would be evicted. Regarding Unit 110, Dikker entered into a written lease for Unit 301 in 2010, and on April 12, 2017, Dikker and Jason entered a written lease for Unit 110. Plaintiffs allege that they have experienced ongoing habitability issues since Defendants purchased the property in 2012, leading to damages, including health conditions.

On

August 14, 20, and 26, 2026, Dikker became the appointed guardian ad litem for London, Lucky, and Luca.

The

operative pleading is the First Amended Complaint ("FAC"), filed April 02, 2021, alleging the same causes of action. On April 30, 2021, Defendants filed their Answer. On September 08, 2022, Dorchester filed a Cross-Complaint against Maddalena, alleging one cause of action for Breach of Contract.

On

January 24, 2023, the Court found that 20STCV27967 and 22STCV29229 are related

within the meaning of Rules of Court, Rule 3.300(a). All hearings in cases other than the lead case were advanced and taken off calendar without prejudice. 20STCV27967 was determined to be the lead case.

On

February 1, 2023, Dorchester filed a Motion to Consolidate cases 20STCV27967, 22STCV29229, and 22STUD06834. The motion was granted, with 20STCV27967 designated as the lead case.

On

December 3, 2025, Plaintiffs dismissed Westside. While Westside still participates (see Notice for Mtn. to Compel Answers at Deposition by Dr. Lisa Nagy), the dismissal filed by Plaintiffs included the Complaint and the Cause of Action for Breach of Implied Warranty of Habitability. (See 12/03/2025 Request for Dismissal.)

On

November 20, 2026, the parties stipulated to extend the five-year dismissal date to December 1, 2026. On January 07, 2026, Plaintiffs dismissed 22STUD06834.

At this

time, the parties have participated in various conferences and hearings, including the Final Status Conference on May 11, 2026 concerning filed Motions in Limine, and continued to August 28, 2026. Trial briefs have been filed.

On July

17, 2026, Defendants filed this Motion to Compel Answers at Deposition by Dr. Lisa Nagy ("Motion to Compel"). On July 22, 2026, Defendants filed an Ex Parte Application to specially set the Motion to Compel, which was granted. The Motion to Compel was scheduled for August 7, 2026 and the Final Status Conference and Jury Trial were continued.

On July

27, 2026, Plaintiffs filed their Opposition. The Opposition did not include a separate statement. On July 31, 2026, Defendants filed their Reply.

LEGAL

STANDARD

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc. § 2025.480(a).)

With certain exceptions, "deposition examination of the witness by all counsel, other than the witness' counsel of record, shall be limited to seven hours of total testimony. The court shall allow additional time, beyond any limits imposed by this section, if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination." (Code Civ. Proc. § 2025.290(a).)

DISCUSSION

Plaintiffs

raised procedural challenges to the Motion. They contend that Defendants are not entitled to a late expert-discovery hearing without relief under Code of Civil Procedure section 2024.050, as Defendants brought this motion on the eve of trial after informing Plaintiffs' counsel that no further session was needed on July 15, 2026.

Defendants

argue that Code of Civil Procedure section 2025.480 governs both the procedure and timing, and they have filed this motion within the statutory 60 days. Defendants further contend that counsel was diligent in filing this motion, there is no prejudice to Plaintiffs, and the trial schedule will not be impacted.

Both

parties agree on the following time line:

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Nagy was first deposed on December 30, 2025.

(Decl. Thomas H. Citron ("Citron Decl.") ¶ 3-4; Decl. Daniel J. Libbey ("Libbey Decl.") ¶ 2.)

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Nagy was next deposed on June 18, 2026. (Citron Decl. ¶ 4; Libbey Decl. ¶ 3.)

The issues in this motion stem from the June 18, 2026 deposition session. (Citron Decl. ¶ 5-10.)

Plaintiffs assert that: (1) the June 18, 2026 deposition was adjourned when Defendants' counsel advised that a scheduling conflict prevented him from continuing, (2) Plaintiffs' counsel's office contacted defense counsel to schedule a further session, and (3) on July 15, 2026, defense counsel responded in writing: "Our office no longer needs to take another session of Dr. Nagy. Please provide Dr. Harvey's deposition availability as soon as possible." (Libbey Decl. at ¶¶ 3-6; Exh. 2 [evidencing the statement by Lacey Ludlow, paralegal for Citron's office].)

Section 2024.020 of the Code of Civil Procedure provides:

(a)

Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.

(b)

Except as provided in Section 2024.050, a continuance or postponement of the trial date does not operate to reopen discovery proceedings.

The trial for this action was initially set for September 13, 2022. It appears the most recent ruling on the discovery cut off dates is from March 12, 2024 where Hon. Gail Killefer continued the trial to September 24, 2024, and ruled that all discovery and motion cut-off dates will be based upon the new trial date. (See 03/12/2024 Minute Order.) Accordingly, the discovery cut-off is based on the September 24, 2024 trial date. Fifteen days before September 24, 2024 is September 9, 2024. Accordingly, all discovery motions were to be heard on or before September 24, 2024.

There were successive sessions of Nagy's deposition after the discovery cut-off date in part because Plaintiffs produced documents in connection with Nagy's expert testimony after the discovery cut-off and in a shorter time before the deposition sessions than permitted by the Code of Civil Procedure. Faced with either excluding documents produced after the discovery cut-off or granting leave to have this motion heard to determine whether further deposition should be compelled, the Court believes that, in the interest of justice, proceeding with this motion is the better course.

Regarding Plaintiffs' assertion that a meet and confer did not occur, the record is muddled as Lacey Ludlow, paralegal for Plaintiffs' counsel's office stated: "Our office no longer needs to take another session of Dr. Nagy. Please provide Dr. Harvey's deposition availability as soon as possible." (Libbey Decl. at ¶¶ 3-6; Exh. 2.) There was some colloquy during the portions of Nagy's deposition in which Defendants' counsel sought a resolution to the witness's refusal to respond or answers that Defendants' counsel believed were evasive.

With regard to the four questions that Defendants ask this Court to compel Nagy to answer, the Court rules as follows:

Nagy's Disability Insurer. Defendants contend that this information is relevant to discover further what restrictions the disability insurance company has put on her receiving income from practicing medicine. If the issue whether she practices medicine is raised by either party and Defendants seek to argue that her not being a practicing physician impacts the credibility of her expert opinions, and she then testifies that the only reason she is not practicing is because of restrictions under her disability insurance, then further inquiry into the extent of those restrictions, other than her hearsay testimony as to what the insurance company told her would be relevant and outweigh any privacy right she would assert. Therefore, the Court would grant the motion to compel as to this testimony.

Nagy's Use of Her Medical License. Nagy did not give a direct answer to this question. Therefore, the Court would compel her to respond to this question.

Nagy's Background and Training

to Give an Opinion on a Person's Mental Illness Being Caused by Mold Exposure. Nagy did not answer the question on this subject, which is relevant to the subject matter of this case. Therefore, the Court compels her to respond to this question.

Whether Nagy's Recommendation

that Mr. Dicker Use a Sauna was Medical Advice. Nagy responded that she was not providing medical advice in making that recommendation.

Therefore, the Court denies the motion to compel.

Conclusion

Defendants

Dorchester Properties LLC, Westside Habitats LLC, and Richard Mehta's Motion to Compel Answers at Deposition by Dr. Lisa Nagy is granted in part and denied in part, as stated in the Ruling, above.

Date: 08/07/2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court

[1]

Minor plaintiffs Jason Cousins, Luca Cousins, London Cousins, and Lucky Cousins share the same surname. The Court addresses each individually by their respective first name for the purpose of clarity. No disrespect is intended.

[2]

The Complaint header states that there is an Eleventh Cause of Action for Injunctive and Declaratory Relief. A review of the Complaint shows that such a request is not within the substance of the pleadings.